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ORAL ARGUMENT NOT YET SCHEDULED

No. 25-3041

BRIEF FOR THE UNITED STATES

UNITED STATES COURT OF APPEALS
FOR THE DISTRICT OF COLUMBIA CIRCUIT

UNITED STATES OF AMERICA,
Appellee,

v.

DAN EDWIN WILSON,
Appellant.

APPEAL FROM THE UNITED STATES DISTRICT COURT FOR THE DISTRICT OF COLUMBIA
Cr. No. 23-427 (DLF)

BRIEF FOR THE UNITED STATES

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Cr. No. 23-427 (DLF)

CERTIFICATE OF PARTIES, RULINGS, AND RELATED CASES

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Pursuant to D.C. Circuit Rule 28(a)(1), appellee hereby states as follows:

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Parties and Amici

The parties to this appeal are appellant Dan Edwin Wilson and appellee the United States of America. On July 3, 2025, this Court appointed Alexander Cave as amicus curiae to present arguments in support of the district court's March 13, 2025, memorandum opinion and order denying Wilson's 28 U.S.C. § 2255 motion.

Parties and Amici

The parties to this appeal are appellant Dan Edwin Wilson and appellee the United States of America. On July 3, 2025, this Court appointed Alexander Cave as amicus curiae to present arguments in support of the district court's March 13, 2025, memorandum opinion and order denying Wilson's 28 U.S.C. § 2255 motion.

Rulings Under Review

This is an appeal from an order by the Honorable Dabney L. Friedrich denying Wilson's § 2255 motion.

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Related Cases

Appellee is unaware of any related cases.

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TABLE OF CONTENTS

Page

STATEMENT OF THE CASE 1
ISSUE PRESENTED 1
STATEMENT OF THE CASE 1
A. Procedural History 1
B. The District Court's Order Denying Wilson's § 2255 Motion 3
This Court's Order Denying Wilson's Motion for Release Pending Appeal 4
SUMMARY OF ARGUMENT 4
ARGUMENT 4
I. The District Court Erred When it Concluded that Wilson's Firearms Offenses were not Covered by the President's Pardon. 4
CONCLUSION 7

TABLE OF CONTENTS

STATEMENT OF THE CASE 1
ISSUE PRESENTED 1
Procedural History 1
STATEMENT OF THE CASE 1
A. Procedural History 1
The District Court's Order Denying Wilson's § 2255 Motion 6
B. The District Court's Order Denying Wilson's § 2255 Motion 3
This Court's Order Denying Wilson's Motion for Release Pending Appeal 10
SUMMARY OF ARGUMENT 4
ARGUMENT 4
SUMMARY OF ARGUMENT 13
I. The District Court Erred When it Concluded that Wilson's Firearms Offenses were not Covered by the President's Pardon. 13
ARGUMENT 4
The District Court Erred When it Concluded that Wilson's Firearms Offenses were not Covered by the President's Pardon. 13
CONCLUSION 7

CONCLUSION 20

TABLE OF AUTHORITIES

TABLE OF AUTHORITIES*

Cases: **Page(s)**

Cases

Andrews v. Warden,
958 F.3d 1072 (11th Cir. 2020) 6

Dubin v. United States,
599 U.S. 110 (2023) 5

Ingersoll-Rand Co. v. McClendon,
498 U.S. 133 (1990) 5

Lamar, Archer & Cofrin, LLP v. Appling,
584 U.S. 709 (2018) 5

Rosemond v. Hudgins,
92 F.4th 518 (4th Cir. 2024) 6

The Buena Ventura,
175 U.S. 384 (1899) 5

United States v. Wilson,
2025 WL 1009047 (D.D.C. Mar. 13, 2025) 3, 4

United States v. Wilson,
32 U.S. 150 (1833) 6

United States v. Wilson, 2025 WL 1009047
(D.D.C. Mar. 13, 2025) 4, 6, 7, 8, 9, 16, 17

Statutes:

18 U.S.C. § 372 1

18 U.S.C. §§ 922(g)(1) & 924(a)(2) 1

26 U.S.C. §§ 5841, 5861(d), & 5871 1

28 U.S.C. § 2255 ..... 3, 7

Rules:

Fed. R. Crim. P. 20(a) 2

Other Authorities:

Proclamation No. 10887, 90 Fed. Reg. 8331 (Jan. 29, 2025) 2

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* Authorities upon which we chiefly rely are marked with asterisks.

iv

ISSUE PRESENTED

Whether the district court erred when it concluded that Wilson's offenses were not covered by President Trump's pardon of "individuals convicted of offenses related to events that occurred at or near the United States Capitol on January 6, 2021."

STATEMENT OF THE CASE

A. Procedural History

In June 2022, while investigating appellant Dan Wilson's involvement in the January 6, 2021, attack on the United States Capitol, law enforcement agents executed a search warrant at Wilson's home in the Western District of Kentucky (see Document (Doc.) 1-1 (Statement of Facts in support of Criminal Complaint) at 1-6; Doc. 159 (Statement of Offense) at 9-10).[1] Among other things, the agents found six firearms, which Wilson was prohibited from possessing as a result of his previous felony convictions (Doc. 1-1 at 5-6; Doc. 59 at 9-10).

Wilson later entered a plea agreement in which he agreed to plead guilty to conspiracy to impede or injure an officer, in violation of 18 U.S.C. § 372; possession of a firearm by a prohibited person, in violation of 18 U.S.C. §§ 922(g)(1) & 924(a)(2); and possession of an unregistered firearm, in violation of 26 U.S.C. §§ 5841, 5861(d), & 5871 (Doc. 56 (plea agreement) at 1). The first charge arose from Wilson's conduct leading up to and during the events of January 6, 2021 (Doc. 59 at 1-9). The latter two charges arose from the firearms found in Wilson's home (*id.* at 9-10). As part of his plea agreement, Wilson agreed to have those charges transferred from the Western District of Kentucky to the District of Columbia under Federal Rule of Criminal Procedure 20(a) (*id.*).

Wilson pleaded guilty on May 17, 2024 (5/17/24 Transcript (Tr.) 35-36). On August 28, 2024, the Honorable Dabney L. Friedrich sentenced Wilson to concurrent terms of 60 months in prison on each count, to be

[1] "Doc. __" refers to the district court docket number for Case No. 23-cr-427 (D.D.C.).

at 1-9). The latter two charges arose from the firearms found in Wilson's home (id. at 9-10). As part of his plea agreement, Wilson agreed to have those charges transferred from the Western District of Kentucky to the District of Columbia under Federal Rule of Criminal Procedure 20(a) (id.).

Wilson pleaded guilty on May 17, 2024 (5/17/24 Transcript (Tr.) 35-36). On August 28, 2024, the Honorable Dabney L. Friedrich sentenced Wilson to concurrent terms of 60 months in prison on each count, to be followed by three years of supervised release (8/28/24 Tr. 63-64). Wilson did not appeal.

On January 20, 2025, President Trump issued a presidential proclamation granting "a full, complete and unconditional pardon to . . . individuals convicted of offenses related to events that occurred at or near the United States Capitol on January 6, 2021." Proclamation No. 10887, 90 Fed. Reg. 8331 (Jan. 29, 2025). The proclamation excluded fourteen people from the pardon's scope—Wilson was not one of them. *Id.* The pardon's purpose, the President said, was to end a "grave national injustice" and begin a "process of national reconciliation." *Id.* To ensure the full and expeditious implementation of the proclamation, the President delegated to the Attorney General the responsibility to "administer and effectuate the immediate issuance of certificates of pardon to all individuals described [in the pardon]." *Id.* Wilson received a certificate of pardon from the Department of Justice informing him that he had been "pardoned by the Presidential Proclamation of January 20, 2025," and stating that the pardon covered his "convictions for offenses related to events that occurred at or near the United States Capitol on January 6, 2021" (Doc. 110, Exhibit A).

for offenses related to events that occurred at or near the United States Capitol on January 6, 2021" (Doc. 110, Exhibit A).

Shortly after the President issued his proclamation, Wilson was released from custody by the Bureau of Prisons. *United States v. Wilson*, 2025 WL 1009047, at *1 (D.D.C. Mar. 13, 2025). The Bureau of Prisons subsequently sought to have Wilson return to custody, prompting Wilson to move for a stay of any order requiring his reincarceration (Doc. 100). The district court granted a stay and ordered the government to "file a brief, with supporting legal authority, that sets forth its position as to why the Court should not order the defendant to self-report to the Federal Bureau of Prisons to serve the remainder of his sentence on the firearms offenses, which are unrelated to the defendant's criminal conduct on January 6, 2021" (2/3/25 Minute Order).

On February 8, 2025, the government filed a short pleading setting forth its understanding that, because Wilson's firearms offenses "did not occur at the United States Capitol on January 6, 2021," they were not covered by the President's pardon (Doc. 103 at 2). The next day, the district court entered a minute order finding "that the plain language of the President's January 20, 2025 pardon does not extend to [the defendant's Western District of Kentucky firearm convictions]," and ordering Wilson to "self-surrender to the Bureau of Prisons, as directed

B. The District Court's Order Denying Wilson's § 2255 Motion

On March 13, 2025, the district court entered an order denying Wilson's 28 U.S.C. § 2255 motion. *See United States v. Wilson*, 2025 WL 1009047, at *9 (D.D.C. Mar. 13, 2025). In the accompanying opinion, the court determined that, for an offense to fall within the President's pardon, "it must be tethered to a specific time—January 6, 2021—and the President's January 20, 2025 pardon does not extend to that," "[b]ecause Wilson did not use the firearms he possessed in Kentucky when he conspired to impede and injure officers at the Capitol on

SUMMARY OF ARGUMENT

January 6, 2021, his firearm convictions are not covered by the Presidential Pardon." *Id.*

The pardon at issue in this case reaches any conviction or charged conduct that is "*related to* the events that occurred at or near the United States Capitol on January 6, 2021." That language is not limited solely to offenses that occurred at the U.S. Capitol on January 6, 2021. In the context of President Trump's intent that the pardon will end a "grave national injustice" and begin a "process of national reconciliation," the pardon's remedial purpose will not be achieved if people subjected to January 6-related investigations continue to be prosecuted for certain in-home offenses that would not have been discovered but for those investigations. Wilson's firearms offenses were just such offenses, and thus the Department of Justice reasonably concluded that the pardon covers them.

SUMMARY OF ARGUMENT

The pardon at issue in this case reaches any conviction or charged conduct that is "related to the events that occurred at or near the United States Capitol on January 6, 2021." That language is not limited solely to offenses that occurred at the U.S. Capitol on January 6, 2021. In the context of President Trump's intent that the pardon will end a "grave national injustice" and begin a "process of national reconciliation," the pardon's remedial purpose will not be achieved if people subjected to January 6-related investigations continue to be prosecuted for certain in-home offenses that would not have been discovered but for those investigations. Wilson's firearms offenses were just such offenses, and thus the Department of Justice reasonably concluded that the pardon covers them.

ARGUMENT

I. The District Court Erred When it Concluded that Wilson's Firearms Offenses were not Covered by the President's Pardon.

ARGUMENT

The District Court Erred When it Concluded that Wilson's Firearms Offenses were not Covered by the President's Pardon.

The President's proclamation provided, as relevant, that the pardon reaches any conviction or charged conduct that is "related to the events that occurred at or near the United States Capitol on January 6, 2021." 90 Fed. Reg. at 8331. That language is plainly not limited solely to offenses that occurred at the U.S. Capitol on January 6, 2021. The words "relate[d] to" in their "normal sense" have a "broad common-

90 Fed. Reg. at 8331 (emphasis added). That language is plainly not limited solely to offenses that occurred at the U.S. Capitol on January 6, 2021. The words "relate[d] to" in their "normal sense" have a "broad common-sense meaning" that potentially reaches anything having "a connection with" the related-to events. *Lamar, Archer & Cofrin, LLP v. Appling*, 584 U.S. 709, 717 (2018). How expansively depends on the "context." *Dubin v. United States*, 599 U.S. 110, 119 (2023) ("That the phrase ['relate to'] refers to a relationship or nexus of some kind is clear. Yet the kind of relationship required, its nature and strength, will be informed by context." (internal citation omitted)).

The relevant context—as provided in the proclamation itself—is President Trump's intent that the pardon will end a "grave national injustice" and begin a "process of national reconciliation." 90 Fed. Reg. at 8331; *see also The Buena Ventura*, 175 U.S. 384, 394 (1899) (declining to give a cramped construction to a presidential proclamation on the ground that the President "never intended it"). The proclamation's remedial purpose will not be achieved if people subjected to January 6-related investigations continue to be prosecuted for certain prohibited offenses that would not have been discovered but for those investigations. Whether an offense falls within the scope of this remedial purpose—and thus is "related to" the events at the Capitol on January 6—involves a fact-intensive and case-specific inquiry.

Here, the Department has determined that there is no sound reason to believe that Wilson's possession of firearms at his home, while being a prohibited person, would have been discovered in any way other

than as the unexpected byproduct of executing a search warrant seeking
are sufficiently related to those events to fall within the pardon's scope
evidence related to Wilson's conduct at the U.S. Capitol on January 6.
as described in the presidential proclamation's text.
For example, there was no victim or witness who feasibly would have

In reviewing the Department's reading of the President's pardon,
reported this offense to the authorities, nor any investigation unrelated
"deference should be accorded to an executive agency's interpretation of
to the events of January 6, 2021, that would have otherwise prevented
it.
an executive order it is charged with administering," including in the

In sum, the Department has concluded that were it not for
context of a pardon. *Andrews v. Warden*, 958 F.3d 1072, 1078 (11th Cir.
Wilson's involvement in "the events that occurred at or near the United
2020). As the Eleventh Circuit has observed, "deference to an agency's
States Capitol on January 6, 2021," 90 Fed. Reg. at 8331, his firearms
interpretation is sensible in this context, where a court cannot even
offenses would not have come to light, let alone been prosecuted. His
convictions are sufficiently "related to" those events to fall within the
review a pardon that a recipient has not presented to it." *Id.* (citing
pardon's scope as described in the presidential proclamation's text.
United States v. Wilson, 32 U.S. 150, 161-63 (1833)). And as the Fourth

In reviewing the Department's reading of the President's pardon,
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is quite limited. *See Rosemond v. Hudgins*, 92 F.4th 518, 525-26 (4th Cir.
an executive order it is charged with administering," including in the
context of a pardon. *Andrews v. Warden*, 958 F.3d 1072, 1078 (11th Cir.
2024). Because the Department's position on the pardon is reasonable, it
2020). As the Eleventh Circuit has observed, "deference to an agency's
warrants deference. *Andrews*, 958 F.3d at 1078.
interpretation is sensible in this context, where a court cannot even

The district court concluded that the Department's reading of the
review a pardon that a recipient has not presented to it." *Id.* (citing
United States v. Wilson, 32 U.S. 150, 161-63 (1833)). And as the Fourth
pardon has been "inconsistent[ ]" in other cases and thus "appears to be
Circuit has recognized, the Judicial Branch's role with respect to
a post hoc rationalization advanced to support its ongoing litigating
pardons is quite limited. *See Rosemond v. Hudgins*, 92 F.4th 518, 525-26
positions." *Wilson*, 2025 WL 1009047, at *6. But any inadvertent
(4th Cir. 2024). Because the Department's position on the pardon is
reasonable it warrants deference. *Andrews*, 958 F.3d at 1078.
deviations from the Department's consistent reading of the pardon has

rationalization," but are instead a change in considered judgment based on the pardon's language and purpose.

CONCLUSION

WHEREFORE, the government respectfully submits that the District Court's order denying Wilson's § 2255 motion should be reversed.

Respectfully submitted,

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CERTIFICATE OF COMPLIANCE

CERTIFICATE OF COMPLIANCE WITH RULE 32(a)

I HEREBY CERTIFY pursuant to Fed. R. App. P. 32(g) that this brief contains 1,505 words, excluding the parts of the brief exempted by Fed. R. App. P. 32(f) and D.C. Circuit Rule 32(e)(1), and therefore complies with the type-volume limitation of Fed. R. App. P. 32(a)(7)(B). This brief has been prepared in 14-point TeX Gyre Schola, a proportionally spaced typeface.

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that I have caused a copy of the foregoing Brief for Appellee to be served by electronic means, through the Court's CM/ECF system, upon counsel for appellant, Carolyn Stewart, Esq., Stewart Country Law PA, Plant City, FL 33567, and upon court-appointed amicus curiae, Alexander J. Cave, Covington & Burling LLP, One CityCenter, 850 Tenth Street NW, Washington, DC 20001, on this 20th day of October, 2025

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/s/
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